DISTRICT COURT OF MARYLAND FOR _____ City/County

Located at _____ Telephone _____
Court Address

Case No. _____

_____ vs. _____
Plaintiff/Judgment Creditor — Defendant/Judgment Debtor

_____ _____
Street Address — Street Address

_____ _____
City, State, Zip — City, State, Zip

MOTION FOR RELEASE OF PROPERTY FROM LEVY/GARNISHMENT OR TO EXEMPT PROPERTY FROM EXECUTION

(Md. Rules 3-643, 3-645, and 3-645.1)

The Judgment Debtor asks for ☐ the release from levy ☐ the exemption from execution of judgment of the property described as:

_____

_____

_____

because:

☐ the judgment has been vacated, has expired, or has been satisfied.
☐ The property is exempt from levy.
☐ the Judgment Creditor has failed to comply with the Maryland Rules of Procedure or an order of court regarding the enforcement proceedings.
☐ property sufficient in value to satisfy the judgment and enforcement costs will remain under levy after the release.
☐ the levy upon the specific property will cause undue hardship to the Judgment Debtor and the Judgment Debtor has delivered to the sheriff or made available for levy alternative property sufficient in value to satisfy the judgment and enforcement costs.
☐ the levy has existed for 120 days without sale of the property, and the court has not extended the time.
☐ the Judgment Debtor elects to exempt a property to the value allowed by law.
☐ the Judgment Debtor further requests a court review of the sheriff's appraisal made at the time of levy.
☐ the Judgment Debtor has filed an appeal and supersedeas bond and requests a stay of execution on the judgment pending appeal.
☐ other (defense or objection) _____

_____.

_____ _____
Date — Signature of Defendant

_____ _____
Telephone Number — Printed Name

_____ _____
E-mail — Street Address

_____ _____
Fax — City, State, Zip

CERTIFICATE OF SERVICE

I certify that the following party, parties, or attorney(s) was/were served with a copy of this Motion for Release of Property from Levy/Garnishment or To Exempt Property from Execution as indicated:

Person served (note if attorney): _____

Address of the person served: _____

Service method: ☐ first-class mail on _____ (Date), ☐ hand delivery on _____ (Date)

☐ service on registered user via MDEC system on the effective date of filing.

Person served (note if attorney): _____

Address of the person served: _____

Service method: ☐ first-class mail on _____ (Date), ☐ hand delivery on _____ (Date)

☐ service on registered user via MDEC system on the effective date of filing

_____ _____ _____
Date — Signature — Attorney Number

For additional person(s) served, please attach completed form CC-DC-128 (Certificate of Service).

Case No. _____

NOTICE OF HEARING ON MOTION TO ELECT EXEMPTION

A request for a hearing on the Motion of the Defendant to claim exemption from execution has been made by _____.

The hearing will be held on _____ (Date) at _____ (Time) ☐ AM ☐ PM at the court location shown above. If no timely response to the motion or request for hearing is filed, the court may proceed without a hearing.

To request a foreign language interpreter or reasonable accommodation under the Americans with Disabilities Act, or other applicable Maryland or federal law, please contact the court immediately. Possession and use of cell phones and other electronic devices may be limited or prohibited in designated areas of the court facility.

_____ (Date) _____ (Clerk)

ORDER REGARDING RELEASE OF PROPERTY FROM LEVY/GARNISHMENT OR TO EXEMPT PROPERTY FROM EXECUTION

HEARING:

☐ no request for a hearing was made.

☐ a request for a hearing was made, but the court finds that a hearing is not necessary for the following reason(s):

_____

_____.

☐ a hearing was held on _____ (Date).

The court **FINDS** that:

☐ the judgment has been vacated, has expired, or has been satisfied.

☐ the property is exempt from levy.

☐ the Judgment Creditor has failed to comply with the Maryland Rules of Procedure or an order of court regarding the enforcement proceedings.

☐ property sufficient in value to satisfy the judgment and enforcement costs will remain under levy after the release.

☐ the levy upon the specific property will cause undue hardship to the Judgment Debtor and the Judgment Debtor has delivered to the sheriff or made available for levy alternative property sufficient in value to satisfy the judgment and enforcement costs.

☐ the levy has existed for 120 days without sale of the property, and the court has not extended the time.

☐ _____

_____

_____.

After consideration of the motion, the court **ORDERS** that:

☐ this matter be scheduled for a hearing on _____ (Date) at _____ (Time) ☐AM ☐ PM at the court location shown above.

☐ the property described as _____

_____

_____

is released from levy.

☐ the motion to exempt property from execution is granted to the extent of _____

_____.

☐ an appeal bond having been filed, execution on the judgment is stayed pending appeal or further order of the court.

☐ the motion is denied.

_____ (Date) _____ (Judge) _____ (ID Number)

Reset